

M/s Padam Atta Chakki v. State of U.P.

Allahabad High Court · Division Bench · 3 January 2019 · Writ-C No. 43415 of 2018 · **Writ dismissed with liberty to EE under clause 6.5**

HEADNOTE

A writ seeking to restrain recovery of a disputed electricity bill and arrears is not entertained when clause 6.5 of the Electricity Supply Code, 2005 provides a remedy before the Executive Engineer. The petition is dismissed with liberty to approach that officer.

FACTUAL SUMMARY

M/s Padam Atta Chakki applied on 14 September 2009 for an electricity connection to run an atta chakki. It then failed to deposit electricity bills, citing financial problems. The writ sought a direction not to recover the bill dated 29 August 2018 for Rs.7,42,942. Counsel for Dakshinanchal Vidyut Vitran Nigam Ltd submitted that the disputed bill and arrears had a remedy under clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer, Vidyut Vitran Khand-II, Etawah.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternate remedy before Executive Engineer

HOLDING

Where the consumer seeks a writ restraining recovery of a disputed electricity bill and arrears, and clause 6.5 of the Electricity Supply Code, 2005 furnishes a remedy before the Executive Engineer, the writ is dismissed with liberty to pursue that statutory objection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 29.08.2018 FOR RS.7,42,942 AND LIABILITY FOR ARREARS

No finding on the bill; petitioner left to clause 6.5 before the Executive Engineer. ¶ 1